

Families and Children Manual	Section: Categories of Eligibility
Policy Manual Number: 015.005	Chapter: Former Foster Care Children up to Age 26

FORMER FOSTER CARE CHILDREN UP TO AGE 26

Legal Authority: 42 USC 1396(a)(10)(A)(i)(IX); 42 CFR 435.150; Tenn. Comp. R. & Regs. 1200-13-20

1. Policy Statement

The Affordable Care Act (ACA) of 2010 requires states to provide Medicaid benefits to individuals under the age of 26 who were previously in foster care in the state. Individuals under age 26 are eligible to receive TennCare Medicaid if they were under the responsibility of the Tennessee Department of Children's Services (DCS) and enrolled in TennCare Medicaid upon turning age 18.

Starting January 1, 2023, the Substance Use-Disorder Prevention that Promotes Opioid Recovery and Treatment for Patients and Communities (SUPPORT) Act, requires states to provide Medicaid benefits to individuals who were previously in foster care in any state. Individuals under age 26 are eligible to receive TennCare Medicaid if they were in foster care under the responsibility of any state, were enrolled in Medicaid when they aged out of foster care, and they meet all other non-financial eligibility requirements. Individuals who aged out of foster care in another state must have turned 18 on or after January 1, 2023. If an individual turned 18 prior to January 1, 2023, he must have aged out of DCS custody and received TennCare Medicaid at the time he aged out to be considered for eligibility in the Former Foster Care category.

2. Non-Financial Eligibility Requirements

- a. **Age:** An individual eligible in this category may maintain eligibility up to age 26.
- b. **Citizenship:** An individual must be a U.S. Citizen, U.S. National or eligible non-citizen. An individual is not required to provide documentary evidence of citizenship or national status if she was assisted under Title IV-B or received foster care maintenance or adoption assistance payments under Title IV-E.
- c. **Enumeration:** An individual must possess and provide a valid Social Security Number, unless he meets an exception.
- d. **Residency:** An individual must be a resident of the state of Tennessee.
- e. **Former Foster Care Recipient:** An individual must have been in foster care under the responsibility of a state and received Medicaid until aging out at age 18 or older. If an individual aged out of foster care in another state, the individual must have turned 18 on or after January 1, 2023, to be considered a former foster care recipient for TennCare Medicaid eligibility purposes.

3. Financial Eligibility Requirements

There are no financial eligibility requirements for this category.

4. Verification

Former foster care information is received from DCS and stored in TennCare's Medicaid Management Information System (MMIS) for individuals who aged out of DCS custody. TennCare verifies former

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foster care status through MMIS for individuals who aged out of DCS custody and turned 18 prior to January 1, 2023.

For individuals who turn (or turned) 18 on or after January 1, 2023, TennCare accepts self-attestation of former foster care status, unless TennCare has information that is not compatible with the attested information. If TennCare has a reason to doubt an individual's former foster care status, and the individual's former foster care status cannot be verified electronically, additional verification may be requested.

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